

Ved Prakash v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ-C No. 31463 of 2021 · **Writ disposed; Para 6.8 objection with eight-week stay.**

HEADNOTE

A writ to quash a 15 January 2018 recovery notice is disposed of without opinion on merits. The consumer may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the assessing officer must decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Ved Prakash sought quashing of a 15 January 2018 recovery notice issued by the distribution licensee. An earlier listing recorded a prima facie view, from a Sub-Divisional Officer inquiry, that the then Junior Engineer had registered a false case on which recovery was being pressed. Licensee officers filed personal affidavits. At disposal, counsel for the licensee stated that the petitioner could object to the demand and that the objection would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery under para 6.8

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 5 within four weeks. If submitted in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action on the impugned demand shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court relegated the consumer to a time-bound Para 6.8 objection and stayed coercive recovery pending that disposal. ¶ 4-5

assessment-6.8-alternate-remedy The writ was not decided on merits; the consumer was sent to the statutory Para 6.8 objection before the assessing officer. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 15 JANUARY 2018 RECOVERY NOTICE AND WHETHER IT RESTED ON A FALSE CASE REGISTERED BY THE JUNIOR ENGINEER

Expressly no opinion on merits; relegated to a Para 6.8 objection. ¶ 4